

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

# CASE OF SAVCHENKO AND OTHERS v. RUSSIA

*(Applications nos. 43267/21 and 24 others –*
*see appended list)*

JUDGMENT

STRASBOURG

11 January 2024

*This judgment is final but it may be subject to editorial revision.*



**In the case of Savchenko and Others v. Russia,**

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Branko Lubarda*, President*,
Armen Harutyunyan,
Ana Maria Guerra Martins*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 30 November 2023,

Delivers the following judgment, which was adopted on that date:

# PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

# THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of nationwide protests in support of the jailed opposition leader, Aleksey Navalnyy. They also raised other complaints under the provisions of the Convention.

# THE LAW

## I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

## II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

## III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

## IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

## V. REMAINING COMPLAINTS

14. Some applicants raised additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

## VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

# FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Hold*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 11 January 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

| | |
|---|---|
| Viktoriya Maradudina | Branko Lubarda |
| Acting Deputy Registrar | President |

# APPENDIX

## List of applications raising complaints under Article 11 of the Convention
## (disproportionate measures against organisers and participants of public assemblies)

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 1. | 43267/21<br>07/08/2021 | **Artem Vasilyevich SAVCHENKO**<br>1985 | | Rally "Free Navalnyy"<br><br>Rostov-on-Don<br><br>31/01/2021 | article 20.2 § 6.1 of CAO | detention for 7 days | Rostov Regional Court<br>03/03/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.25 p.m. on 31/01/2021 until 1 p.m. on 01/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |
| 2. | 43272/21<br>17/08/2021 | **Dmitriy Viktorovich BURAK**<br>1985 | Zhdanov Ivan Yuryevich<br>Vilnius | Rally "Free Navalnyy"<br><br>Moscow<br><br>31/01/2021 | article 20.2 § 6.1 of CAO | detention for 7 days | Moscow City Court<br>10/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 31/01/2021. | 5,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 3. | 43415/21<br>10/08/2021 | **Eduard Georgiyevich MINOLIS**<br>1998 | Polyakova Veronika Valeryevna<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>02/02/2021 | article 20.2 § 6.1 of CAO | detention for 12 days | Moscow City Court<br>10/02/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.40 p.m. on 02/02/2021 until 8 a.m. on 03/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |
| 4. | 43422/21<br>23/08/2021 | **Vitaliy Muzafarovich MIRZOYEV**<br>1973 | Zhdanov Ivan Yuryevich<br>Vilnius | Rally "Free Navalnyy"<br>Samara<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Samara Regional Court<br>01/04/2021 | Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 23/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 5. | 43434/21<br>23/08/2021 | **Aleksey Sergeyevich BELOUSOV**<br>2002 | Zhdanov Ivan Yuryevich<br>Vilnius | Rally "Free Navalnyy"<br>Kursk<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Kursk Regional Court<br>09/06/2021 | Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 2.30 p.m. until 6.50 p.m. on 23/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 6. | 43444/21<br>23/08/2021 | **Roman Sergeyevich ZEMSKOV**<br>1982 | Zhdanov Ivan Yuryevich<br>Vilnius | Rally "Free Navalnyy"<br>Samara<br>23/01/2021 | article 20.2 § 5 of CAO | 30 hours of community work | Samara Regional Court<br>06/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.45 p.m. until 9.50 p.m. on 23/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 7. | 43481/21<br>11/08/2021 | **Nikolay Dmitriyevich VOLKOV**<br>1995 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>31/01/2021 | article 20.2 § 6.1 of CAO | detention for 10 days | Moscow City Court<br>19/05/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.10 p.m. on 31/01/2021 until 8 p.m. on 01/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |
| 8. | 43492/21<br>12/08/2021 | **Viktoriya Romualdovna ZAREMBA**<br>1999 | Zakhvatov Dmitriy Igorevich<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>03/02/2021 | article 20.2 § 6.1 of CAO | detention for 11 days | Moscow City Court<br>12/02/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.15 a.m. until afternoon on 03/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 5,000 |
| 9. | 43638/21<br>11/08/2021 | **Daniil Vadimovich YELETSKIY**<br>2000 | Nurgaleyev Danil Ilnurovich<br>Kazan | Rally "Free Navalnyy"<br><br>Kazan<br><br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Tatarstan Republic<br>10/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report. | 4,000 |
| 10. | 43646/21<br>11/08/2021 | **Renata Maratovna LUKOYANOVA**<br>2001 | Nurgaleyev Danil Ilnurovich<br>Kazan | Rally "Free Navalnyy"<br><br>Kazan<br><br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Tatarstan Republic<br>10/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report. | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 11. | 43778/21<br>23/08/2021 | **Roman Sergeyevich KUZMIN**<br>1981 | Zhdanov Ivan Yuryevich<br>Vilnius | Rally "Free Navalnyy"<br>Yaroslavl<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Yaroslavl Regional Court<br>06/04/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.30 p.m. until 10.20 p.m. on 23/01/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 12. | 43786/21<br>26/08/2021 | **Taras Arturovich GORELOV**<br>1994 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Vladivostok<br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Primorye Regional Court<br>19/04/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.30 p.m. until 7 p.m. on 31/01/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 13. | 43809/21<br>26/08/2021 | **Ivan Petrovich SAVCHENKO**<br>1987 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Rostov-on-Don<br>31/01/2021 | article 20.2 § 6.1 of CAO | detention for 7 days | Rostov Regional Court<br>02/03/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.45 p.m. on 31/01/2021 until 6 p.m. on 01/02/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;<br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |
| 14. | 43822/21<br>23/08/2021 | **Albert Fakhimovich ISKUZHIN**<br>1983 | | Rally "Free Navalnyy"<br>Ufa<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Supreme Court of the Bashkortostan Republic<br>01/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 2.15 p.m. until 5.30 p.m. on 23/01/2021;<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 15. | 43831/21<br>26/08/2021 | **Marina Yuryevna NIKOLAYEVA**<br>1995 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Kazan<br>31/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 10,000 | Supreme Court of the Tatarstan Republic<br>17/03/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.50 p.m. on 31/01/2021 until 7.40 p.m. on 01/02/2021. | 4,000 |
| 16. | 43849/21<br>10/08/2021 | **Aleksandr Fedorovich BEKHTOLD**<br>1950 | Zhdanov Ivan Yuryevich<br>Vilnius | Rally "Free Navalnyy<br>Ryazan<br>23/01/2021 | article 20.2 § 2 of CAO | fine of RUB 20,000 | Ryazan Regional Court<br>04/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 3 p.m. until 8 p.m. on 23/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 17. | 43856/21<br>10/08/2021 | **Mikhail Igorevich KIRILLOV**<br>1996 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>02/02/2021 | article 20.2 § 6.1 of CAO | detention for 8 days | Moscow City Court<br>10/02/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.45 p.m. on 02/02/2021 until 11.30 a.m. on 03/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |
| 18. | 43858/21<br>10/08/2021 | **Aleksandr Ivanovich DAVYDOV**<br>1995 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | detention for 10 days | Moscow City Court<br>22/03/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.30 p.m. on 31/01/2021 until 3 p.m. on 01/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; | 5,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| | | | | | | | | Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | |
| 19. | 43862/21<br>10/08/2021 | **Aleksandra Igorevna BOBROVA**<br>1993 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | detention for 15 days | Moscow City Court<br>03/02/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.25 p.m. on 31/01/2021 until 8 p.m. on 01/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |
| 20. | 43902/21<br>23/08/2021 | **Yekaterina Nikolayevna FILIPPENKO**<br>1989 | Zhdanov Ivan Yuryevich<br>Vilnius | Rally "Free Navalnyy"<br>Magnitogorsk<br>31/01/2021 | article 19.3 § 1 of CAO | detention for 2 days | Chelyabinsk Regional Court<br>16/03/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.20 p.m. on 31/01/2021 until 2.40 p.m. on 01/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 5,000 |
| 21. | 43929/21<br>13/08/2021 | **Aleksey Igorevich PARKIN**<br>1984 | Karagodina Veronika Yuryevna<br>St Petersburg | Rally "Free Navalnyy"<br>St Petersburg<br>31/01/2021 | article 20.2 § 6.1 of CAO | detention for 10 days | St Petersburg City Court<br>09/03/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.45 p.m. on 31/01/2021 until 5.37 p.m. on 01/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 5,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 22. | 44010/21<br>30/08/2021 | **Anton Olegovich TARANOV**<br>1984 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Moscow City Court<br>02/03/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.10 p.m. until 11 p.m. on 23/01/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |
| 23. | 44078/21<br>30/08/2021 | **Sergey Sergeyevich SERGEYEV**<br>1989 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>02/02/2021 | article 20.2 § 6.1 of CAO | detention for 10 days | Moscow City Court<br>09/02/2021<br>(The administrative case file was returned to the first-instance court (the Nagatinskiy District Court in Moscow) and was available in its registry on 03/03/2021 (the applicant submits a copy of the electronic tracking system available on the District Court's Internet site) | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11 p.m. on 02/02/2021 until 8 p.m. on 04/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |
| 24. | 44133/21<br>30/08/2021 | **Kirill Stepanovich GERASIMOV**<br>1995 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>02/02/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Moscow City Court<br>18/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report from 12.45 a.m. until 4.30 a.m. on 03/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative charges | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 25. | 44142/21<br>30/08/2021 | **Ilya Sergeyevich DUMANSKIY**<br>1997 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>31/01/2021 | article 20.2 § 6.1 of CAO | detention for 10 days | Moscow City Court<br>02/03/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 6.15 p.m. on 31/01/2021 until 4 p.m. on 01/02/2021;<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |

[1] Plus any tax that may be chargeable to the applicants.